Non-Disclosure Agreement (NDA)

This Non-Disclosure Agreement (“Agreement”) is entered into as of ____________________ (the “Effective Date”), by and between:

Disclosing Party: AfriNuts Export SARL, a company incorporated in Côte d’Ivoire (RCCM: CI-ABJ-03-2026-B12-04223; IDU: CI-2026-0066959 J), with its registered office in Odienné, Côte d’Ivoire (“Disclosing Party”), and
Receiving Party: _____________________________, located at ____ (“Receiving Party”).

1. Purpose

The Disclosing Party intends to disclose confidential and proprietary information to the Receiving Party solely to evaluate a potential investment opportunity in AfriNuts Export SARL’s business, including review of the business plan, financial materials, and demonstrations of the Farm OS platform (the “Purpose”).

2. Definition of Confidential Information

“Confidential Information” means any non-public, proprietary, or sensitive information disclosed by the Disclosing Party to the Receiving Party, whether written, oral, or electronic, including but not limited to:

- The AfriNuts Export business plan, including financial projections, strategies, and market analysis.
- Trade secrets, supplier networks, and operational processes.
- Plans for farming and processing center development.
- Farm OS — the Disclosing Party’s proprietary farm management and traceability software — including its source code, system architecture, database structure, algorithms, user interfaces, dashboards, screenshots, documentation, and the data recorded in it.
- Farmer and supplier data recorded in Farm OS, including identities, locations, volumes, quality records, and pricing information.
- Any other information marked as “confidential” or reasonably understood to be confidential by its nature.

3. Exclusions from Confidential Information

Confidential Information does not include information that:

A. Was publicly known or available at the time of disclosure.
B. Becomes publicly known through no fault of the Receiving Party.
C. Is obtained by the Receiving Party from a third party with no breach of confidentiality obligations.

D. Is independently developed by the Receiving Party without referencing the Disclosing Party's Confidential Information.

4. Obligations of the Receiving Party

The Receiving Party agrees to:

a. Use the Confidential Information solely for the Purpose stated in this Agreement.
b. Maintain the confidentiality of the Confidential Information and not disclose it to any third party without prior written consent from the Disclosing Party.
c. Take all reasonable measures to protect the Confidential Information from unauthorized use or disclosure, at least as stringently as it protects its confidential information.

5. Permitted Disclosures

The Receiving Party may disclose Confidential Information only:

a. To employees, advisors, or agents who need to know such information for the Purpose and are bound by confidentiality obligations at least as strict as those in this Agreement.
b. If required by law or regulation, provided the Receiving Party promptly notifies the Disclosing Party to allow for protective measures.

6. Non-Circumvention

The Receiving Party shall not, during the term of this Agreement, directly or indirectly contact, solicit, or enter into business with the Disclosing Party's farmers, cooperatives, suppliers, or buyers identified through the Confidential Information, except through the Disclosing Party or with its prior written consent.

7. Return or Destruction of Information

Upon the Disclosing Party's request, the Receiving Party shall immediately return or destroy all copies of the Confidential Information, including any notes, summaries, or materials derived from it.

8. Term and Survival

This Agreement takes effect on the Effective Date. The Receiving Party's confidentiality obligations under this Agreement shall survive for five (5) years from the date of disclosure of the Confidential Information.

9. No Rights Granted

This Agreement does not grant the Receiving Party any rights, licenses, or ownership interests in the Disclosing Party’s Confidential Information, in Farm OS, or in any other intellectual property of the Disclosing Party.

10. Remedies

The Receiving Party acknowledges that a breach of this Agreement may cause irreparable harm for which monetary damages may be inadequate, and that the Disclosing Party shall be entitled to seek injunctive relief in addition to any other remedies available at law or in equity.

11. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Côte d’Ivoire, including OHADA law, and any dispute shall be subject to the competent courts of Côte d’Ivoire.

12. Entire Agreement

This Agreement constitutes the entire understanding between the parties regarding the Confidential Information and supersedes all prior agreements and understandings related to its subject matter. It may only be amended in writing signed by both parties.

13. Signatures

Disclosing Party:
AfriNuts Export SARL
By: ____________________________
Name: Hamza Sangare
Title: Founder & CEO
Date: __________________________
Receiving Party:
____
By: ____________________________

Name: _________________________

Title: __________________________

Date: __________________________